

25CV04228 Enzo Carlos, et al. vs. Angela Catherine Canfield

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-29

Motion: Motion for Order Compelling the Attendance and Testimony of Plaintiff Enzo Carlos At His Deposition

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Tentative Ruling: Enzo Carlos, et al. vs. Angela Catherine Canfield

Case Number

25CV04228

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/29/2026 - 10:00

Nature of Proceedings

Motion for Order Compelling the Attendance and Testimony of Plaintiff Enzo Carlos At His Deposition

Tentative Ruling

For Plaintiffs Enzo Carlos and Susana Perez: Monica M. Robles, Robles-Muzinich, APC

For Defendant Angela Catherine Canfield: Jennifer T. Tseng, H. Daniel Burrows, E. Richard McGuire, Tseng & Associates

RULING

For the reasons stated herein, the motion of Defendant for an order compelling the attendance and testimony of Plaintiff at his deposition is granted. Plaintiff Enzo Carlos is ordered to appear for a deposition on August 3, 2026, at the time and place listed in the "Continued Notice of Taking Deposition of Plaintiff Enzo Carlos" dated April 14, 2026, a copy of which is attached to Defendant's motion. The Court awards sanctions in favor of Defendant and against Plaintiff Enzo Carlos and his counsel of record, Robles-Muzinich, A Professional Corporation, jointly and severally, in the amount of \$960, payable to Defendant's

counsel. Payment of sanctions is due by August 29, 2026.

Background

This action arises from a motor vehicle accident that occurred on June 13, 2024, in Santa Barbara, California, when Defendant Angela Catherine Canfield (Defendant) allegedly caused their vehicle to collide with Plaintiffs' vehicle, causing injury and damages to Plaintiffs Enzo Carlos (Carlos) and Susana Perez, and fled the scene. Plaintiffs filed their complaint against Defendant on July 3, 2025, asserting two causes of action: (1) motor vehicle; and (2) general negligence.

On November 5, 2025, Defendant filed an answer to the complaint, generally denying its allegations and asserting affirmative defenses.

On June 30, 2026, Defendant filed a motion for an order compelling Plaintiff Carlos to attend and testify at a deposition, and awarding monetary sanctions in favor of Defendant and against Carlos and his counsel of record.

In support of the motion, counsel for Defendant, Brian Goldberg (attorney Goldberg) asserts that Carlos is the party claiming personal injuries and damages in this case. (Goldberg Dec., ¶ 3.) On February 16, 2026, attorney Goldberg sent an email to counsel for Carlos requesting available dates for Carlos' deposition. (Goldberg Dec., ¶ 4 & exhibit A.) Attorney Goldberg followed up on February 18 because no response had been received, and further states that, despite efforts to give Carlos a reasonable amount of time to provide available dates, Carlos' counsel failed to provide any dates. (Goldberg Dec., ¶¶4-5.)

On March 16, Defendant's counsel served a deposition notice (the First Notice) setting Carlos' deposition for March 31, 2026. (Goldberg Dec., ¶ 5 & exhibit B.) On March 30, attorney Goldberg's office sent an email to Carlos' counsel to confirm that deposition, in response to which Carlos' counsel stated that the deposition would not go forward due to a conflict. (Goldberg Dec., ¶ 6 & exhibit A.) Attorney Goldberg's office requested that Carlos' counsel provide alternative dates. (Goldberg Dec., ¶ 7.)

On April 3, attorney Goldberg's office followed up regarding Carlos' availability for the deposition and advised Carlos' counsel that if available dates were not provided, Defendant would unilaterally set the deposition. (Goldberg Dec., ¶ 8.) On that date, counsel for Carlos asked whether the deposition could proceed on April 10, 2026. (Goldberg Dec., ¶ 9.) That same day, Defendant's counsel served a deposition notice (the Second Notice) setting the deposition of Carlos for April 10, 2026, based on the date proposed by Carlos' counsel. (Ibid. & exhibit C.)

On April 7, Carlos' counsel emailed attorney Goldberg's office stating that, due to an unexpected personal matter, counsel needed to cancel the deposition scheduled for April 10, 2026, and that they were available for the deposition on April 14, 16, or 17, 2026, or during the second week of May. (Goldberg Dec., ¶ 10.) Attorney Goldberg's office responded that Defendant was not available on the dates provided and, to avoid further back and forth and continued cancellations, requested that Carlos' counsel provide specific dates and times of availability during the second week of May. (Goldberg Dec., ¶ 11 & exhibit A.) After receiving no response, Defendant's counsel served a deposition notice on April 14 (the Third Notice) setting Carlos' deposition for May 15, 2026. (Goldberg Dec., ¶ 12 & exhibit D.)

On May 14, Carlos' counsel cancelled the deposition and stated that they were available on June 28 or 29, 2026. (Goldberg Dec., ¶ 13 & exhibit A.) On May 19, attorney Goldberg's office served another deposition notice (the Fourth Notice) based on the proposed date of June 29. (Goldberg Dec., ¶ 14 & exhibit E.) On June 25, attorney Goldberg's office emailed Carlos' counsel to confirm the deposition scheduled for June 29, 2026, in response to which Carlos' counsel stated that the deposition must be canceled due to unforeseen circumstances affecting their ability to proceed. (Goldberg Dec., ¶ 15 & exhibit A.)

Attorney Goldberg asserts that Carlos did not serve a valid objection or seek a protective order before canceling their deposition, and that the repeated cancellations and failure of Carlos to proceed with a properly noticed deposition, including

on the dates proposed by Carlos' counsel, have caused Defendant to incur unnecessary attorney fees and costs. (Goldberg Dec., ¶¶ 16-17.)

Carlos opposes the motion. In support of that opposition, counsel for Carlos, Monica Robles (attorney Robles), states that on July 14, their office sent a written correspondence to Defendant's counsel offering July 24, July 29, and August 3, 2026, as alternative dates for Carlos' deposition, and offering to contribute \$500 toward Defendant's expenses in an effort to resolve the matter without Court intervention. (Robles Dec., ¶ 2 & exhibit D.) Defendant did not accept this proposal. (Id. at ¶ 2.)

Analysis

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with [Code of Civil Procedure] [s]ection 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action." (Code Civ. Proc., § 2025.010.) Relevant here, "[t]he Defendant may serve a deposition notice without leave of Court at any time after that Defendant has been served or has appeared in the action, whichever occurs first." (Code Civ. Proc., § 2025.210, subd. (a).)

"A party desiring to take the oral deposition of any person shall give notice in writing." (Code Civ. Proc., § 2025.220, subd. (a).) The written notice of the deposition must state all of the matters set forth in subdivision (a) of Code of Civil Procedure section 2025.220. (Code Civ. Proc., § 2025.220, subd. (a)(1)-(8).) Further, "[t]he party who prepares a notice of deposition shall give the notice to every other party who has appeared in the action. The deposition notice, or the accompanying proof of service, shall list all the parties or attorneys for parties on whom it is served." (Code Civ. Proc., § 2025.240, subd. (a).)

"The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (Code Civ. Proc., § 2025.280, subd. (a).)

The opposition of Carlos to the motion presents no information, evidence, or argument to dispute whether, and appears to concede that, the form, contents, and service of the First Notice, the Second Notice, the Third Notice, or the Fourth Notice by Defendant comply with code requirements discussed above.

Code of Civil Procedure section 2025.410 provides that a party served with a deposition notice that does not comply with section 2025.210 et seq. "waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled...." (Code Civ. Proc., § 2025.410, subd. (a).) The available information and evidence also reflects, without dispute, that Carlos did not serve written objections specifying any errors or irregularities in the First Notice, the Second Notice, the Third Notice, or the Fourth Notice described above. The available information and evidence also does not show why there exists any error or irregularity in those deposition notices, or that Carlos timely served written objections specifying any errors or irregularities in compliance with Code of Civil Procedure section 2025.410.

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, ... the party giving the notice may move for an order compelling the deponent's attendance and testimony...." (Code Civ. Proc., § 2025.450, subd. (a).) A motion made under subdivision (a) of Code of Civil Procedure section 2025.450 must be "accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(1)-(2).)

Absent a dispute, the declaration of attorney Goldberg is sufficient to show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

The present record reflects that Carlos has offered to attend their deposition on July 24, July 29, or August 3, 2026. For these and all further reasons discussed above, the Court will grant the motion, and order Carlos to attend a deposition on August 3, 2026.

“If a motion under subdivision (a) is granted, the Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

As attorney Robles states, as further described above, that they offered to contribute toward the expenses incurred by Defendant in regard to the dispute at issue, that statement suggests to the Court that the imposition of monetary sanctions against Carlos would not be unjust.

Furthermore, apart from generally citing an unspecified “conflict”, an “unexpected and pressing personal matter requiring immediate attention”, an unspecified “medical emergency”, and “unforeseen circumstances”, the opposition of Carlos and the record of the parties’ correspondence does not include facts showing why Carlos acted with substantial justification in failing to proceed with the deposition after service of the First Notice, the Second Notice, the Third Notice, and the Fourth Notice. (See Opp. at pp. 1-2 & Goldberg Dec., exhibit A at pdf pp. 16 & 18-20.)

Though, under the circumstances present here, the Court finds that the imposition of monetary sanctions against Carlos and their counsel is justified, “[t]he principle of reasonableness means a trial Court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.) For the reasons discussed below, the Court finds that the amount of attorney fees claimed by Defendant is excessive under the circumstances here.

The amount of monetary sanctions needs to reflect the reasonable expenses incurred as a result of a misuse of the discovery process. While the Court agrees that Defendant incurred attorney fees and costs as a result of the failure of Carlos and their counsel to proceed with a duly noticed deposition including on the proposed dates further discussed above, and without having served a valid objection, the motion is not lengthy, and does not present novel, complex, or difficult legal or factual issues. (See *Maria P. v. Riles* (1987) 43 Cal.3d 1281, 1294, fn. 8.) Under the totality of the circumstances here, including the Court’s experience in addressing attorney fee issues, and for all reasons discussed above, the Court finds that 2 hours of attorney Goldberg’s time at their reasonable hourly rate of \$450, for a total of \$900, represents the reasonable amount of attorney fees incurred as a result of the failure of Carlos and their counsel to proceed with the deposition, and for which monetary sanctions are appropriately awardable. (See Goldberg Dec., ¶ 19.) The Court will also award Defendant filing fees in the amount of \$60. (Goldberg Dec., ¶ 20.)

Judges

Judge Thomas Anderle

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